

STANDING ORDER NO. 124

Subject: Action against persons found driving motor vehicles in commission of cognizable offences viz. 279 IPC (rash and negligent act), 337 IPC (simple injury), 338 IPC (grievous injury), 304A IPC (fatal injury or death) in road accident cases or violation of section 184 M.V. Act (dangerous driving), 185 M.V. Act (drunken driving) or 197 M.V. Act (taking vehicle without authority) and driving uninsured motor vehicle (146/196 M.V. Act).

1. Introduction

Drivers of motor vehicles are sometimes involved in committing cognizable offences e.g. cases of road accidents, viz. 279 IPC (rash and negligent act), 337 IPC (simple injury), 338 IPC (grievous injury), 304A IPC (fatal injury or death), or violations of section 184 M.V. Act (dangerous driving), 185 M.V. Act (drunken driving) or 197 M.V. Act (taking vehicle without authority) and 146/196 M.V. Act (driving uninsured motor vehicle).

2. It has been observed by the Hon'ble High Court of Delhi that owners and drivers of uninsured vehicles are not prosecuted u/s 196 of the Motor Vehicle Act, 1988 when they are involved in cases registered under relevant sections of the IPC pertaining to motor vehicle accident i.e. if a motor vehicle involved in an accident u/s 279/337/338/304-A IPC etc. is uninsured, then section 196 of Motor Vehicles Act, 1988 should also be added and prosecution be undertaken u/s 279/337/338/304-A IPC etc. read with section 196 Motor Vehicles Act, 1988. The same shall also apply in case the driver does not possess a licence or has consumed alcohol beyond permissible limits, or has committed any other offence under the provisions contained in M.V. Act/Rules. Some of the common violations, their fines are separately attached as Annexure-'A'.

It is seen that the focus of prosecuting officers is largely on the investigation of the IPC offences made and pertaining to the accidents cases. They do not focus on other offences i.e. those under the MV Act. etc. which may also have been committed by the person concerned. It is, therefore, necessary that all the requisite documents as prescribed under section 130 and 158 of M.V. Act, 1988 read with rule 139 of Central Motor Vehicles Rules, 1989 and rule 32 of Rules of Road Regulations, 1989 should also be checked. It is also noticed that relevant sections of M.V. Act, 1988 are also not added by Investigating Officers/ Prosecuting Officers to include instances of uninsured

vehicles and other serious traffic offences under the provisions of M.V. Act, 1988. The driving licences of such persons are not being taken for suspension by the Investigating Officers/Prosecuting Officers under the provisions of section 19 of Motor Vehicles Act, 1988. As a result these offenders continue to drive the motor vehicles. The suspension of driving licence is essential and desirable as it would have a salutary and deterrent effect on such offenders and would prevent such cognizable acts.

Therefore, action in cases where the drivers of motor vehicles are involved in committing cognizable offences in respect of cases of road accidents viz. 279 IPC (rash and negligent act), 337 IPC (simple injury), 338 IPC (grievous injury), 304A IPC (fatal injury or death), etc. or violation of section 184 M.V. Act (dangerous driving), 185 M.V. Act (drunken driving) or 197 M.V. Act (taking vehicle without authority), can be taken by Investigating Officers/Prosecuting Officers by informing the State Transport Authority under the provisions of section 19 Motor Vehicle Act, 1988 for disqualifying a person from holding a driving licence or revoke the licence in such cases or action as deems fit under the prevalent M.V. Rules/M.V. Act etc. The Investigating Officers/Prosecuting Officers should always check for insurance of the motor vehicle under the provision of section 146 M.V. Act and initiate prosecution under section 196 M.V. Act, 1988 against the violators. The SHOs and ACsP shall ensure while preparing and forwarding the charge sheets, that the accused are also charged under the relevant section of the M.V. Act.

An intimation to this effect by giving brief facts of the case, including name, father's name, residential address, driving licence number etc. of the accused shall be sent by the Investigating/Prosecuting Officers to the State Transport Authority concerned with a copy to Computer Centre, Traffic through MACT Cell District for requesting suitable action under the provisions of Section 19 Motor Vehicles Act, 1988. Computer Centre, Traffic shall maintain a computerized record of such drivers at Teen Murti Traffic Police, Lines, New Delhi, in future. Proper liaison should be made by Computer Centre, Traffic with MACT Cell District in this respect also.

The format for reporting to Transport Authority for suspension of driving license/action, as deems fit, shall be as follows:-

Sl. No.	Date, case FIR No./DD No./PS etc.	Name of the Accused/defaulters	Father's name & residential address	Driving license No.	Issuing authority	Brief facts of the case
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3. Supersession Clause

This supersedes the earlier S.O. issued vide this Hdqrs. circular No. 4517-4792/SO ND (R), dated New Delhi 05.09.1988.

All concerned must ensure strict compliance of this standing order.



(B.K. GUPTA)
COMMISSIONER OF POLICE
DELHI

OB No. 112 /RE/PHQ

Dated 24.12.10

No. 18251-500 /Record Branch//PHQ/AC-I dated Delhi, the 24-12-10

Copy forwarded to:-

1. All Special Commissioners of Police including MD/DPHC, Delhi.
2. All Joint Commissioners of Police, Delhi.
3. Addl. Commissioners of Police including Principal/PTC, Delhi.
4. All Deputy Commissioners of Police of Districts/Units, including FRRO, Delhi/ New Delhi.
5. SO/PA to Commissioner of Police, LA to Commissioner of Police, Delhi.
6. All ACsP/ in PHQ.
7. ACP/IT Centre with the direction to upload the Standing Order in Intra DP net.
8. All ACsP Sub Division.
9. All SHOs/Delhi Police through their respective DCsP with the direction to place the Standing Order in register No. 3 Part-I of the Police Stations.
10. All Inspectors/PHQ, including Reader to CP, Delhi.
11. Librarian/PHQ